
Journal

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Court

HIGH COURT OF SINDH,KARACHI

Date

2012-11-28

Appeal No.

. P. NO. S-349 OF 2010

Judge

HABIB-UR-REHMAN SHAIKH

Parties

MST. DAREEMA & ANOTHER (PETITIONERS) VERSUS MUHAMMAD QASIM & OTHERS (RESPONDENTS)

Lawyers

MR. BILAL A. KHILJI, ADVOCATE FOR THE PETITIONER. MR. ABDUL HAFEEZ SANDHU, ADVOCATE FOR THE RESPONDENT.

Statutes

FAMILY COURTS ACT 1964 - SECTION 17 CIVIL PROCEDURE CODE (V OF 1908) - SECTIONS 10 AND 11 QANUN-E-SHAHADAT ORDER, 1984 OATHS ACT, 1872 - SECTIONS 8, 9,10 AND 11 ADMINISTRATION OF JUSTICE FAMILY COURTS ACT, 1964 - SECTION 5 FAMILY COURTS ACT, 1964 - SECTIONS 13 AND 14 CIVIL PROCEDURE CODE (V OF 1908) - ORDER IX RULE 9 WORDS AND PHRASES MAINTENANCE ALLOWANCE

Judgment

HABIB-UR-REHMAN SHAIKH -J: Through this Constitutional Petition, the Petitioner seeks that the order dated 09.02.2010 and 15.08.2009 impugned herein are illegal, arbitrary and without any lawful authority and the same is liable to be set aside. That jurisdiction of the learned trial Court to entertain the Suit for Recovery of Maintenance of the Petitioner and dowry articles occurred in Korangi and recovery of maintenance as regarding continuous cause of action and minor Petitioner has the right to file Suit for Recovery of Maintenance till he attains the majority and other relief.

2. The facts of the Petition are that the Petitioners had filed Family Suit No. 2175/2008 for Recovery of Dowry Articles and Maintenance in the Court of learned Xth Civil and Family Judge, Karachi East. The Petitioner No. 2 being the minor was living with his real mother upto 14.03.2010. Being the minor he is unable to file above Petition independently, hence the mother has filed the same as his next friend. Marriage between the Petitioner No. 1 and the Respondent No. 1 performed on 21.11.1996 at Karachi for dowry amount of Rs. 20,000/- according to Hanafi Law. After rukhsati she was taken by the Respondent No. 1 to his house and the marriage was duly consumed. Dowry Articles of Rs. 1,60,000/- were also delivered to the Respondent No. 1 on 16.01.1996.-The Respondent No. 1 was already married but this fact was suppressed and concealed from the parents of the Petitioner No. 1 at the time of marriage. This fact came to the knowledge after sometime to the Petitioner. Out of said wedlock, the Petitioner No. 1 gave birth to a baby boy (Petitioner No. 2) and he is presently study at Korangi Grammar Academy and maintained by the Petitioner No. 1. After some quarrel, the Petitioner No. 1 and the Respondent No. 1 have separated with each other and she was thrown out by the Respondent No. 1 in three clothes then she was residing with her parents at Korangi. She has moved an application before higher authorities and finally she filed Family Suit bearing No. 146/2006, which was dismissed for non-prosecution on 13.09.2008, which came into the knowledge of the Petitioner No. 1 after about a period of two months of its dismissal and it was very late to file an application for restoration of the Suit as there is no bar against filing of fresh Suit hence, fresh Suit bearing No. 2175/2008 was filed by the Petitioner.

3. After notice, the Respondent No. 1 was served and moved an application for dismissal of the Suit, without examining the witnesses, the learned trial Court on application dated Nil/04/2009 the Suit of the Petitioner was dismissed on 10.08.2009. Then the Petitioner preferred an Appeal, which was also dismissed on 09.02.3010. Both the orders are impugned in the present Petition.

4. Learned counsel for the Petitioner has contended that the impugned orders passed by the learned trial Court as well as the learned First Appellate Court are based on non-reading and misreading of the facts as well as legal aspects of the case and in the Family Laws there is no bar to file a fresh Suit when cause occurred, but both the learned Courts below have not considered this point. He has further contended that the Petitioner has no other alternate remedy with her except to file fresh Suit so she filed fresh Suit. He has further argued that the Respondent has filed G & W Appeal No. 76/2008 after dissatisfying with the order dated 29.08.2008 passed by the learned XIIth Civil and Family Judge, Karachi East in G & W Application No. 1005/2006. The same appeal was resulted with modification that the Respondent was handed over the custody of the minor with the directions, to make the minor available to life with his mother at least two days every month till he attains the age of majority under the intimation of the Family Court. After above-mentioned order dated 04.03.2010, C.P. No. S-406/2010 was filed and finally it was observed by this Court on 06.10.2012 the child is already with the Petitioner at the moment in Court as per his wishes. He is allowed to go with the Petitioner/Mother with his consent and in this Court terms and conditions were also settled amicably, which was reproduced in the said order. Thereafter, the Respondents moved a Civil

Appeal No. 20-K of 2010 before the Honourable Supreme Court of Pakistan against the Petitioner herein. The Honourable Supreme Court of Pakistan taken a view "that the impugned order was passed by consent of the Parties in judicial proceedings, to which strong presumption of correctness and sanctity of high order is attached (2002 SCMR 1336 referred). The Appellant himself failed to demonstrate that he could properly look after the welfare of the minor - to say least - as is evident from the fact that he even did * not provide maintenance to him as noted hereinabove.

The minor appearing before us looked fearful to go with the father and appeared happy to stay with his mother. Cumulative effect of what has been observed hereinabove is that we do not find any merit in this Appeal to call for interference. It is, accordingly, dismissed with no order as to costs". He further contended that apart from that the Respondent has failed to provide maintenance to the son of the Petitioner hence, he is entitled to agitate-and seek remedy from the competent forum and. it is only Family Court to decide the dispute regarding maintenance etc. he prays to allow his Petition and remand the case back before the learned trial Court to decide afresh her Suit No. 275/2008 for recovery of dowry articles and maintenance and he further prayed that both the orders passed by the two Courts below be set aside in the interest of justice. In support of his case, learned counsel for the Petitioner has relied upon the case of Syed Zia-ul-Hassan Gilani vs. Mian Khalid Hussain, Additional District Judge, Mainwali (NLR 2001 Civil 407), Mst. Lai Khatoon vs. Judge Family Court Hasilpur & another (1998 MLD 850) and Mahmood Asif Butt vs. District Judge, Gujranwala (2004 CLC 217).

5. On the other hand, learned counsel for the Respondents supported the orders passed by the two Courts below. He has further contended that concurrent findings are there and this Court has no jurisdiction to change the concurrent findings passed by both the Courts below, as the Petitioner has filed Family Suit, which was dismissed, thereafter, without seeking restoration, she filed a fresh Suit on the same cause of action, hence, the Suit of the Petitioner was hit by resjudicata and the Petitioner filed Suit in the learned Family Court has no territorial jurisdiction so the Family Court/learned trial Court has correctly passed the orders, which was maintained by the learned First Appellate Court.' He has further contended that the Suit is time barred. He has further prayed that the orders passed by both the Courts below be maintained and the Petition being meritless may kindly be dismissed. In support of his case, learned counsel for the Respondents has relied upon the case of Rao Muhammad Ashiq Razzaq vs. Mst. Ahida Shahshad (PU 2009 Lahore 558), Muhammad Saeed vs. Mst. Sakina Bibi (1988 CLC Lahore 665), Almas Khakwani vs. Additional District Judge, Lahore (PU 1991 Lahore 301), Anwar Ahmed vs. Mst. Nafeesa Bano (PLD 2009 SC 493), Bashir Ahmed vs. Maula Bukhsh (1990 CLC 1241), Basil Sib tain vs. Muhammad Sharif (2004 SC MR 578), Noor Avenue Cooperative Housing Society, Hanjarwdl, Lahore Development Authority (2008 CLC 200) and Muhammad Sharif vs. Additional District Judge and other (2007 SCMR 49).

6. Heard the learned counsel for the Parties and perused the entire record as well as case law cited by them with their assistance.

7. Family Court was competent to adopt its own procedure. The Provisions of Civil Procedure Code are not applicable to proceedings before the Family Court by virtue of Section 17 of the West Pakistan Family Courts Act, 1964. Section 17 of the Family Courts Act, 1964, which reads as under:- "17. Provisions of Evidence Act and Code of Civil A Procedure not to apply. - (1) Save as otherwise expressly provided by or under this Act, the provisions of the Qanun-e-Shahdat, 1984 (P. O No. 10 of 1984)], and the Code of Civil Procedure, 1908, [except sections 10 and 11], shall not apply to proceedings before any Family Court [in respect of Part 1 of Schedule], (2) Sections 8 to 11 of the Oaths Act, 1872, shall apply to all proceedings before the Family Courts. "

8. The Family Court should and must consider that when the circumstances so demand can

exercise its own powers to prevent the course of justice being deflected from the path. As for the point of limitation the Provisions of Article 120, Limitation Act, 1908 providing six years period for filing Suit in that respect, would be applicable, but when claim was for a specific moveable property or for compensation for wrongful taking, period of limitation was three years from the day, when demand for return of articles was refused. The Court of law is to decide a case keeping in view the rights and liabilities of Parties in the light of record on the file and not merely to dispose of a case in hurry. Courts being ultimate protectors of rights of litigants have the responsibility to ensure that valuable rights of such litigants are not destroyed by their unintentional faults and innocent mistakes. Court should avoid situation where one party in the heat of discussion, or in emotional situation offers oath to the opposite party without due consideration of its effects and without submitting a proper application and the opposite party in the same circumstances immediately accepts the offer without having chance of patiently considering the consequences of oath.

While performing duty of judicial disposition, the Judge should refrain from passing slipshod and rough orders.

9. It is well settled law that if the wife has successfully proved that she had to leave place of her husband due to fear of death and has come to live at a different place with her uncle, Family Court at the place where wife has shifted has thus, jurisdiction to adjudicate her case.

10. In the case of Syed Zia-ul-Hassan Gilani vs. Khalid Hussain, Additional District Judge, Mianwali (NLR 2001 Civil 407) wherein it has been held that:- C "S.5. Wife has option to file maintenance suit either at place of her temporary residence or place of permanent residence as Courts of both places would have concurrent jurisdiction to adjudicate on wife's suit for maintenance for self and children. The place where wife was divorced would be her permanent residence and suit for maintenance filed by wife at such place of permanent residence would be competent, although wife is residing at her temporary residence. " 11. Now question of dismissal of Suit for non-prosecution by the Petitioner. There is nothing wrong if the suit is dismissed for non-prosecution by the Petitioner as the Court has no other alternative, if a Petitioner is not vigilant and is not appearing in the Court to prosecute the matter, the Court cannot proceed further in his absence and also cannot keep the matter pending unnecessarily. The learned counsel for the Respondents in this regard, referred to Section 17 of the Family Courts Act, 1964 and submitted that Provisions of Civil Procedure Code except Section 10 and 11 were not applicable to the proceedings before a Family Court. There is no dispute about the proposition, but the question which requires adjudication now is whether dismissal of a suit for non-prosecution can be challenged through a Constitutional Petition. The simple answer is no. The dismissal of the suit due to non-appearance of the plaintiff has not been provided in the Family Court Act as in the case of a Civil Suit under Order 9, Rule. 3 and 8 CPC. Such an order is not a decree within the meaning of section 13 of the Family Courts Act and, therefore, no decree-sheet in the prescribed manner (Form-I) is prepared so not appealable.

12. A decision of the Family Court is also appealable under Section 14 of the Act. The question which requires consideration is that whether the dismissal of the suit for nonprosecution amounts to a "decision" appealable under Section 14. In the Chambers Dictionary the meaning of "decision" are as under:- E "the act or product of deciding; settlement; judgment; the quality of being decided in character" 13. In view of the definition mentioned in the Chambers Dictionary a "decision" obviously means juridical application of mind regarding a dispute between the parties. It necessarily involves a dispute, actual or potential. It also means the finding of the Courts on the facts. The dismissal of the suit for nonprosecution is not covered by the word decision as defined above. Hence, the dismissal of the suit of the Petitioner by the learned Family Judge Karachi East for non-prosecution did not amount to a decision and, thus, not appealable under

Section 14 of the Family Courts Act.

14. In the case of Mst. Lai Khatoon vs. Judge Family Court Hasilpur & another reported in 1998 MLD 850, it has been held that:- "In view of the definition mentioned in the preceding two paras "decision " obviously means judicial application of mind regarding a dispute between the parties. It necessarily involves a dispute, actual or potential. It also means the finding of the Courts on the facts. The dismissal of the suit for non-prosecution is not covered by the word decision as defined above. Hence, the dismissal of the suit of the Petitioner by the learned Judge Family Court for non-prosecution did not amount to a decision and, thus, not appealable under Section 14 of the Family Courts Act " 15. In the case of Mahmood Asif Butt vs. District Judge, Gujranwala (2004 CLC 217), wherein it has been held that:- "S. 5. Sched & S. 14 - Constitution of Pakistan (1973), Art. 199 - Constitutional Petition-Suit for recovery of past and future maintenance amount- Plaintiff, daughter in her suit filed against her father, had claimed Rs. 24,70,000/- as past maintenance allowance and Rs. 10,000/- p.m. for future maintenance -Suit was resisted by defendant contending that earlier plaintiff and her mother had filed suit for maintenance allowance, but same was dismissed as withdrawn because defendant had paid Rs. 27.000/- and ornaments of gold to mother of plaintiff regarding maintenance of plaintiff-Defendant further asserted that after dismissal of earlier suit, plaintiffs second suit was not maintainable-Both, Trial Court and Appellate Court concurrently decreed the suit directing defendant to pay Rs. 2000/- p.m. as maintenance allowance for a total period of 3-1/2 years as plaintiff after attaining majority had contracted marriage-Validity-In earlier suit, maintenance allowance was granted till plaintiff attained the age of majority, but even after attaining age of majority till her marriage, plaintiff remained with her mother- Defendant being father of plaintiff was bound to provide maintenance allowance of plaintiff who was entitled to receive such maintenance from defendant father even if she attained majority till she got married-Second suit F filed by plaintiff being competent was rightly decreed by Courts below-Concurrent judgment based on proper reappraisal of entire material on record and not suffering from any illegality and infirmity, could not be interfered with in Constitutional Petition." 16. In view of the above discussion, it appears that the order passed by the learned trial Court was neither decision nor a decree hence, it was not appealable. The remedy of the Petitioner was, therefore, to file a fresh Suit, which is not bar under any Provisions of Family Court Act 1964 and being Constitutional Jurisdiction of this Court, efficacious and adequate remedy available to this Court to grant relief Consequently, both the orders dated 09.02.2010 and 15.08.2009 are set aside. The case in hand is remanded back to the learned trial Court having jurisdiction to decide the case afresh by giving full opportunity to the Parties.

17. This Petition was decided by a short order dated 28.11.2012. These are the reasons for the same.

Matter Remanded

easylaw Case No.
1150728

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